

25NWCV01181 25NWCV01181

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV01181 Hearing Date: September 9, 2026 Dept: C

COLE vs HYUNDAI MOTOR AMERICA.

CASE NO.: 25NWCV01181

HEARING: 9/9/26 @ 9:30 AM

#13

TENTATIVE ORDER

I.

Defendant HYUNDAI MOTOR AMERICA's Motion for Compliance Pursuant to Code Civil Procedure § 871.26 is GRANTED.

II.

Defendant's request for monetary sanctions in the amount of \$1,500 against Plaintiff DOROTHY COLE's counsel of record is GRANTED.

Moving Party to give

NOTICE.

Defendant

HYUNDAI MOTOR AMERICA (Defendant) moves for an order for (I) compliance requiring Plaintiff DOROTHY COLE (Plaintiff) to appear and comply with the initial deposition of the Plaintiff under Code of Civil Procedure section 871.26, subdivision (c)(1); and (II) imposing mandatory monetary sanctions in the sum of \$1,500.00.

Background

This

lemon law case was filed on April 3, 2025. Plaintiff alleges that on December 31, 2020, Plaintiff purchased a 2021 Genesis GV80, VIN KMUHBDSB7MU039733 (hereafter "Subject Vehicle" or "Vehicle"). The Subject Vehicle, as reflected in the sales contract, has an approximate value of \$83,548.60. These causes of action arise out of warranty and repair obligations of HYUNDAI MOTOR AMERICA in connection with a vehicle that Plaintiff purchased and for which HYUNDAI MOTOR AMERICA issued an express warranty. The warranty was not issued by the selling dealership. (Complaint, ¶ 8.) Defects and nonconformities to warranty manifested themselves within the applicable express warranty period. The nonconformities substantially impair the use, value, and/or safety of the vehicle. (Complaint, ¶ 29.)

Defendant

answered the Complaint on February 26, 2026.

Legal

Standard

Specific discovery rules apply to certain actions filed on or after January 1, 2025, under the Song-Beverly Consumer Warranty Act. The rules apply to actions against motor vehicle manufacturers that have elected to proceed under Code of Civil Procedure Title 10, chapter 12, §§ 871.20–871.30, which creates expedited procedures for actions seeking restitution or replacement of certain motor vehicles. (Code Civ. Proc., § 871.20, subd. (a).)

Code of Civil Procedure section 871.26, subdivision (c)

provides: "Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of...(1) The plaintiff. (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i)."

"Unless the party failing to comply with this section shows good cause...a court shall impose...[a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar

(\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (Code Civ. Proc., § 971.26, subd. (j)(2).) For a defendant's repeated noncompliance with subdivision (c), "a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so." (Code Civ. Proc., § 871.26, subd. (j)(4).)

Discussion

I.

Plaintiff's

Deposition Compliance

Defendant

requests that this Court order Plaintiff's compliance to appear for an initial deposition currently noticed for October 7, 2026. As relevant here, under section 871.26, subd. (c)(1), "[w]ithin 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of...(1) The plaintiff." Here, Defendant answered the Complaint of February 26, 2026. The 120-day period prescribed by section 871.26, subd. (c)(1) expired on June 26, 2026.

In

opposition, Plaintiff argues Defendant's motion is moot because Plaintiff advised Defendant's counsel that Plaintiff is available on October 1, 2026 or October 7, 2026, beginning at 10:00 a.m., for a remote deposition, and asked Defendant to confirm one of these dates by amended notice. (Fernandez Decl. ¶ 7, Ex. A.)

The

Court finds that Defendant's motion is not moot because Plaintiff's deposition did not occur within 120 days of Defendant's answer. Section 871.26 creates an expedited discovery and dispute resolution process in lemon law matters. A discovery deadline is triggered upon the "filing of the answer or other responsive pleading..." (CCP § 871.26(c).) Here, that deadline was June 26, 2026. Therefore, Plaintiff is ordered to appear for an initial deposition on October 7, 2026 as mutually agreed upon between the parties.

II.

Monetary

Sanctions

Defendant

further moves for monetary sanctions in the amount of \$1,500 against Plaintiff for failing to comply with the initial deposition of Plaintiff under Code of Civil Procedure section 871.26, subdivision (c)(1).

Plaintiff

argues good cause exists under section 871.26(j)(1) because Defendant's own moving papers reflect that its meet-and-confer efforts consisted solely of a single deposition notice followed by four repetitive, brief follow-up emails sent over a three-month period, without any escalation to a phone call or video conference, and Defendant rushed to file this Motion just eight days after its final email. (Fernandez Decl. ¶¶ 7-8, Ex. A.)

The

statute mandates monetary sanctions for Plaintiff's non-compliance within 120 days, the Court finds the statutorily mandated \$1,500 in sanctions warranted. Plaintiff's argument regarding Defendant's lack of meet and confer efforts are unavailing. Section 871.26 does not mandate Defendant meet and confer with Plaintiff for the expedited procedures to be carried out.

Accordingly,

Defendant's motion is GRANTED. Sanctions are imposed upon Plaintiff's counsel of record in the amount of \$1,500 to be paid within 15 business days of this Order.